

22STCV29346 22STCV29346

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-06-25

Motion: ATTORNEYS ELAN DARVISH AND STEVEN ZELIG'S MOTIONS TO BE RELIEVED AS COUNSEL

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Case Number: 22STCV29346 Hearing Date: June 25, 2026 Dept: 733

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES

MAISY

KENDRICK,

Plaintiff,

vs.

USMD

DIRECT, INC.; FAWAD ZAFAR- KHAN; DANIEL GARCIA; CYNTHIA (last name unknown);
and DOES 1 through 100, Inclusive,

Defendants.

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CASE NO.: 22STCV29346

[TENTATIVE] ORDER RE: ATTORNEYS ELAN
DARVISH AND STEVEN ZELIG'S MOTIONS TO BE RELIEVED AS COUNSEL

Dept. 733

8:30 a.m.

June 25, 2026

I.

INTRODUCTION

This

action arises from alleged inappropriate sexual misconduct in administering a

COVID-19 vaccine.

On

September 8, 2022, Plaintiff Maisy Kendrick ("Plaintiff") initiated this action.

On

January 26, 2023, Plaintiff filed a first amended complaint ("FAC") against
Defendants USMD Direct, Inc. ("USMD"), Fawad Zafar-Khan ("Zafar-Khan"), Daniel
Garcia ("Garcia") and Cynthia Meza ("Meza") alleging causes of action for (1)

Deceit, (2) Negligent Misrepresentation, (3) Deceit, (4) Negligent Misrepresentation, (5) Civil Rights Violation, (6) Civil Rights Violation, (7) Sexual Battery, (8) Sexual Battery, (9) Battery, (10) Battery, (11) Breach of Fiduciary Duty, (12) Privacy Violations, (13) Intentional Infliction of Emotional Distress, (14) Intentional Infliction of Emotional Distress, (15) Negligence, and (16) Professional Negligence.

On May 18, 2026, Attorney Elan Darvish filed the instant motion to be relieved as counsel for Plaintiff. On May 22, 2026, Attorney Steven Zelig also filed the instant motion to be relieved as co-counsel for Plaintiff.

No opposition was filed to either motion.

II.

LEGAL STANDARD

An attorney in an action may be changed at any time before or after judgment or final determination upon the order of the court, upon the application of either client or attorney, after notice from one to the other. (Code Civ. Proc., § 284(2)). Rules of Court, rule 3.1362 requires:

1. Notice of motion and motion to

be directed to the client (made on the Notice of Motion and Motion to be Relieved as Counsel Civil form (MC-051));

2.

A declaration stating in general terms, and without compromising the confidentiality of the attorney client relationship, why a motion under Code of Civil Procedure section 284(2), is brought instead of filing a consent under CCP §284(1) (made on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel Civil form (MC-052));

3. Service of the notice of motion

and motion and declaration on all other parties who have appeared in the case; and

4.

The proposed order relieving counsel

(prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel Civil form (MC-053)).

The motion should be denied if withdrawal would prejudice the client. (Rules Prof. Conduct, Rule 3-700(A)(2); Weil & Brown, Cal. Prac. Guide: Civ. Pro. Before Trial, 9:385.2 (2008); 1 Witkin Cal. Pro., Attorneys §72 (2008).) The motion should be denied if it will cause undue delay in the proceeding or cause injustice. (Mandell v. Superior Court, (1977) 67 Cal.App.3d 1, 4.) The determination whether to grant or deny an attorney's motion to withdraw as counsel of record lies within the sound discretion of the trial court, having in mind whether such withdrawal might work an injustice in the handling of the case. (Lempert v. Superior Court (2003) 112 Cal.App.4th 1161, 1173.) A breakdown in the attorney-client relationship (or personality clash) is grounds for withdrawal. (Estate of Falco (1987) 188 Cal.App.3d 1004, 1014.) An attorney is not limited to withdrawing from a case for cause and may withdraw when withdrawal can be accomplished without undue prejudice to the client. (Ramirez v. Sturdevant (1994) 26 Cal.Rptr.2d 554, 559.)

III.

DISCUSSION

Here, Attorney Elan Darvish on behalf of The Darvish Firm and Attorney Steven Zelig on behalf of Bay Cities Law Group each have provided the Court with all the required documents. They each have filed Judicial Council Form MC-051 (Notice of Motion and Motion), MC-052 (Declaration), and MC-053 (Proposed Order). They have also served the required documents upon all parties in the action. They seek to be relieved as counsel on the grounds that there has been a breakdown in the attorney-client relationship, making continued representation to be unreasonably difficult. This is proper ground for withdrawal. (See Estate of Falco (1987) 188 Cal.App.3d 1004, 1014 [a breakdown in the attorney-client relationship is grounds for allowing the attorney to withdraw].)

IV.

CONCLUSION

Thus, the motions to be relieved as

counsel are GRANTED.

Dated this 25th
day of June 2026

Hon. Gary D.
Roberts

Judge of the
Superior Court